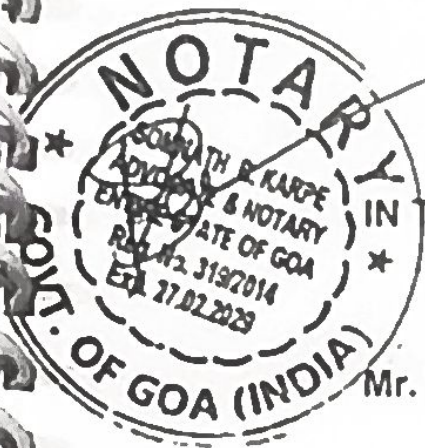


BEFORE THE HON'BLE SOLE ARBITRATOR MR. NITIN N. N.

SARDESSAI AT PANAJI GOA



IN THE MATTER OF ARBITRATION BETWEEN:

Mr. Vikram Shah

...CLAIMANT

VS.

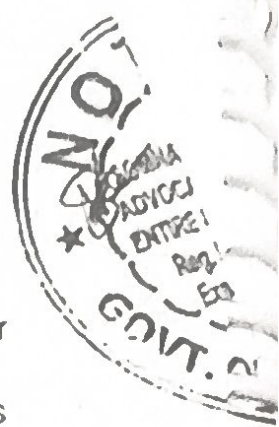
Mr. Riva Trindade and 3 Ors

....RESPONDENTS

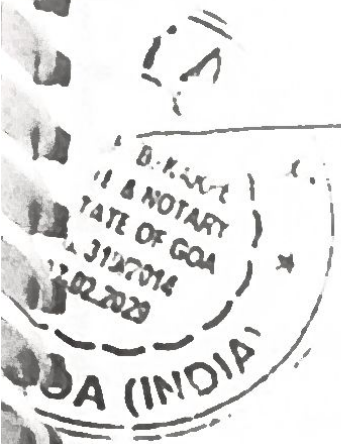
REPLY OF THE RESPONDENT NOS. 1,
2, AND 3 TO THE APPLICATION
SEEKING INTERIM RELIEFS UNDER
SECTION 17 OF THE ARBITRATION
AND CONCILIATION ACT, 1996.

MAY IT PLEASE YOUR LORDSHIP:

The Respondent Nos. 1, 2 and 3 above named most respectfully
beg to state and submit as under: -



1. At the outset, the Application filed by the Claimant under section 17 of the Arbitration and Conciliation Act, 1996 is bad in law, deficient and does not fulfil the essential requisites for entitlement of interim reliefs and is liable to be dismissed in limine.
2. The Respondents No. 1, 2 and 3 deny all and singular the contents of the Application under reply and nothing therein contained to be deemed to be admitted unless expressly done so. Suffice it to say that the contents of the Application under reply which are not specifically adverted to and/or dealt with specifically be taken as denied.
3. The Respondents No. 1, 2 and 3 have filed their statement of defence in the present proceedings and the Respondents Nos. 1, 2 and 3 crave leave of this Hon'ble tribunal to refer and rely on the averments in the statement of defence as if the same have been set out herein verbatim for the purpose of the present reply, so as to avoid repetition and for the sake of brevity and convenience and so also the Respondents No. 1, 2 and 3 crave leave to refer and rely



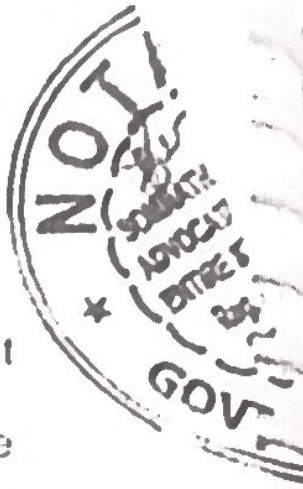
on the documents produced on records with the statement of defence.

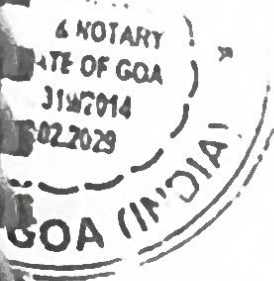
4. The Respondents No. 1, 2 and 3 state and submit that the contents of the Application under reply namely para 3, 4 and 5 corresponds to para 6 (k), 6(l) and 6 (m) respectively while the contents of para 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19 and 20 corresponds to the contents para 6 (r), 6 (s), 6 (t), 6 (u), 6(v) , 6(w), 6(x), 6(y), 6 (z), 6(aa) , 6 (bb), 6(cc), 6 (dd), 6 (ee) and para 7 of the statement of claim and accordingly the Respondents No. 1, 2 and 3 crave leave to refer and rely on the contents on the statement of defence dealing with the said paras in the statement of claim as if the same have been set out in verbatim.
5. The statement of claim which has been filed before this Hon'ble Tribunal is filed in purported pursuance of the invocation of the Arbitration Clause contained in Clause 35 of the Articles of Association dated 01-04-2013, in purported pursuance to the letter dated 28-02-2024, whereby the said Arbitration Clause has been sought to be

[Signature]

invoked by the Claimant, but however the reliefs as sought for by the Claimant are inter alia in respect of the Memorandum of Understanding dated 06-06-2006 which contains an independent arbitration clause at Clause 17 of the said Instrument and consequently the dispute is not arbitrable in the absence of the parties to the said document, namely Pravar Trade Invest Private Limited and M/s Sumer Builders Private Limited, who have had equal share holding in the ratio of 50:50 in the said M/s Loonkar Developers Private Limited.

6. Further, the reliefs as sought for by the Claimant are also inter alia in respect of the property bearing Survey No. 93/3 of the village of Bambolim, the subject matter of the Joint Venture Agreement dated 25-04-2014, which contains an independent arbitration agreement at Clause 27 of the said Instrument and consequently the dispute which is sought to be made as the subject matter of the present arbitration proceedings is not arbitrable in the absence of M/s Kuval Projects Private Limited.





7. As a fact, although the Claimant and late Pascoal Trindade formed various commercial entities for various projects which were undertaken by them on mutual understanding and they having been in construction and development since 1990, subsequent to the death of Pascoal Trindade on 17-01-2022, the Respondent Nos. 1, 2, and 3 have not been given access to the status and/or affairs of the business, so as to ascertain and/or know their entitlement in the said stakes of the business.
8. In fact, subsequent to the death of late Pascoal Trindade, the Respondent Nos. 1, 2, and 3 as his legal heirs and being entitled to the balance standing in his capital and current account as on the date of his death have not even been paid the amount legitimately due and payable to the Respondent Nos. 1, 2, and 3 being his legal heirs and being entitled as expressly covenanted under Clause 28 and 29 of the Articles of Association dated 01-04-2013.
9. As a fact, subsequent to the death of late Pascoal Trindade on 17-01-2022, the Respondent No. 1 had a couple of meetings with the Claimant concerning the entitlement of

[Signature]

the Respondent No. 1, 2, and 3, so as to understand, ascertain and/or know their entitlement in the said stakes of the business and the entitlement of the Respondent Nos. 1, 2, and 3 in the capital and current account as on the date of his death, and the shares in the properties.

10. As a fact, since there was no positive response and/or disclosure coming forth, the Respondent No. 1 subsequent to the meeting with the Claimant on 28-02-2023 at the Bambolim Office, by a letter dated 18-03-2023 requested the Claimant to furnish with copies of the documents and financial statements concerning the business and various companies and AOPs in which late Pascoal Trindade had investments, so as to enable the Respondent Nos. 1, 2, and 3 to understand and ascertain the financial status of various entities viz. Paramount Buildwell Construction Private Limited (Ocean Park Project and Emperor's Boulevard Project), Pravar Trade Invest Private Limited, Pastina Holiday Homes, and Shivam Holiday Homes.

11. Despite the request for the said balance sheets and profit and loss accounts, and the bank statements which were





agreed to be provided by the Claimant to the Respondent No. 1, the same were not furnished and accordingly by the said letter dated 18-03-2023, addressed to the Claimant the request for the said documents and information was renewed.

12. In response to the said letter dated 18-03-2023, the Claimant far from furnishing the information and statements as agreed at the meeting dated 28-02-2023, insisted upon appointment of two mediators to conclude the matters with a requirement of a clear mandate to accept the award, which was virtually a demand, without even affording an opportunity to the Respondent No. 1 to ascertain and understand the status of the affairs concerning the business and various commercial entities for various projects undertaken by Late Pascoal Trindade with the Claimant. It is pertinent to point out that although in the said letter dated 30-03-2023, the soft copies of the last audited balance sheets for the companies was stated to be forwarded on a pen drive, factually no such pen drive was enclosed with

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the said letter and/or furnished and/or handed over to the Respondent No. 1.

13. As a fact, in response to the said letter dated 30-03-2023 addressed to the Claimant, the Respondent No. 1 by letter dated 12-04-2023, whilst expressing astonishment to the proposal for mediation, instead of furnishing the requested document/details, reiterated the request for audited accounts and bank statements, since inception to understand and comprehend the financial position of the Private Limited companies and the AOPs, more particularly since the same contained substantial and significant investments made by late Pascoal Trindade and pointed out that the same were very much valid and that the refusal/denial of the audited accounts and bank statements was not justified.
14. Faced with the said situation, by a letter dated 04-07-2023 addressed to the Claimant the Respondent No. 1 expressed that the Claimant for reasons best known to the Claimant was avoiding disclosing the accounts and bank



statements of the private limited companies and the AOPs, renewed and reiterated the request made in the earlier letter dated 18-03-2023 with a request to provide the audited accounts and bank statements so that things could move forward.

15. By a letter dated 14-07-2023, addressed to the Respondent No. 1, the Claimant resisted the disclosure of the said statements on a specious plea of non-cooperation by the Respondent No. 1 and sought to claim difficulty to him and his family to safeguard/salvage the benefits in the event of continued non-cooperation of the Respondent No. 1.
16. It is stated and submitted that despite repeated requests to the Claimant, the details of the said account are being withheld by the Claimant without any disclosure and/or transparency in that regard to the Respondent Nos. 1, 2, and 3 who are the son, widow, and daughter in law respectively of late Pascoal Trindade.

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17. To the dismay of the Respondent Nos. 1, 2 and 3 far from the entitlement of free access and right to inspect and make copies of the books of accounts, the Respondent Nos. 1, 2 and 3 have been denied and virtually deprived of the right of free access to inspection of the books of accounts despite repeated requests and polite reminders in that regard.
18. With specific reference to para 20 of the Application under reply, the so called factual matrix claimed to have been enumerated is with respect distorted and consequently cannot bring out that the Respondent Nos. 1, 2, and 3 have failed and neglected to come forth and render cooperation for the closure of proceedings and/or execute necessary documentation with respect to the same as alleged. It is denied that the same has allegedly resulted in the delay of the project as alleged and has jeopardised the investment made by the Claimant in the purchase and development of the said property as alleged.
19. With regard to the contents of Para 21, 22, 23 and 24, the contents thereof are denied. It is stated and submitted that



the Application filed by the Claimant under section 17 of the Arbitration and Conciliation Act, 1996 is bad in law, deficient and does not fulfil the essential requisites for entitlement of interim reliefs on a spurious plea that Respondents No. 1, 2 and 3 are hell bent to defeat the rights of the claimant, the respondent no. 4, themselves and also caused loss to M/s Loonkar Developers Pvt. Ltd. and M/s Kuval Projects Pvt. Ltd. as alleged.

20. With regard to the contents of Para 25, 26, 27, 28, 29 30, 31 and 32 the contents thereof are denied.
21. It is denied that the Claimant is entitled to an order directing the Respondent Nos. 1, 2, 3 to pay to the Claimant the sum of Rs. 20,00,00,000/- towards losses allegedly incurred by the Claimant.
22. At the cost of reiteration it is stated and submitted that the Respondent Nos. 1, 2, and 3 have been deliberately kept in the dark without even a fair disclosure and transparency of the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the



share of the members in the assets of the Association, which has neither disclosed nor provided to the Respondent Nos. 1, 2, and 3, in fact in violation and breach of Clause 28 and 29 of the Articles of Association dated 01-04-2013.

23. It is stated and submitted that in fact the Respondent Nos. 1, 2, and 3 are entitled for an order directing the Claimant to forthwith furnish to the Respondent Nos. 1, 2, and 3 the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the assets of the Association and comply the requirements of Clause 28 and 29 of the Articles of Association dated 01-04-2013.

24. It is denied that pending the hearing and final disposal of the present Claim the Claimant is entitled to an order appointing the Claimant as Receiver in respect of the said properties and removing the said properties from the custody of the Respondent No.1, 2, and 3 and committing the same to the custody and management of the Claimant, and conferment upon the Claimant all powers as to

bringing, defending, and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties and execution of documents as the owner himself has as alleged.

25. It is denied that the Claimant is entitled to a relief pending the hearing and final disposal of the present Claim directing the Respondent Nos. 1, 2 and 3 to deposit an amount of Rs. 20,00,00,000/- or such further amounts as directed by this Hon'ble Tribunal or to file an affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached to secure the alleged claim of the Claimant in the present proceedings.
26. It is denied that pending the hearing and final disposal of the present Claim, the Claimant is entitled to an Order attaching the said properties on such terms and conditions as this Hon'ble Tribunal deems fit and proper as alleged.
27. It is denied that the Claimant is entitled to any relief in the present arbitration proceedings and this Hon'ble Tribunal

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accordingly be pleased to dismiss the same with exemplary costs.

PANAJI-GOA

07-03-2025

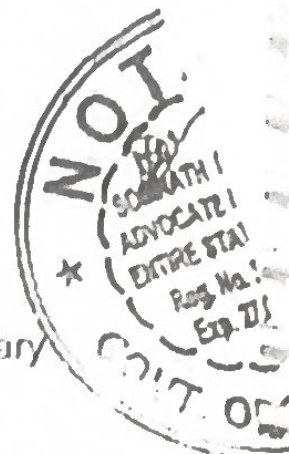
RESPONDENT

ADVOCATE FOR RESPONDENT

VERIFICATION

I, Riva Anthony Trindade, Son of Late Pascoal Trindade, 52 years of age, Indian National, Businessman, resident of House No. 21/23/A, P.O NIO, Dona Paula, Tiswadi-Ilhas Goa the Respondent No.1 herein do hereby on solemn affirmation beg to verify that what has been stated by me at para 7(Part), 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18(Part), and 22(Part) is based on facts true to my own knowledge and/or based on the records available with me and what has been stated by me at para 1, 2, 3, 4, 5, 6, 7(Part), 18(Part), 19, 20, 21, 22(Part), 23, 24, 25, 26,

[Signature]





and 27 are in the nature of inferences of fact and/or legal submissions based on legal advice which I believe to be true.

SOLEMNLY VERIFIED AT PANAJI

ON THIS 7th DAY OF MARCH 2025

DEPONENT

Identified by me:-

Vilas Pavithran

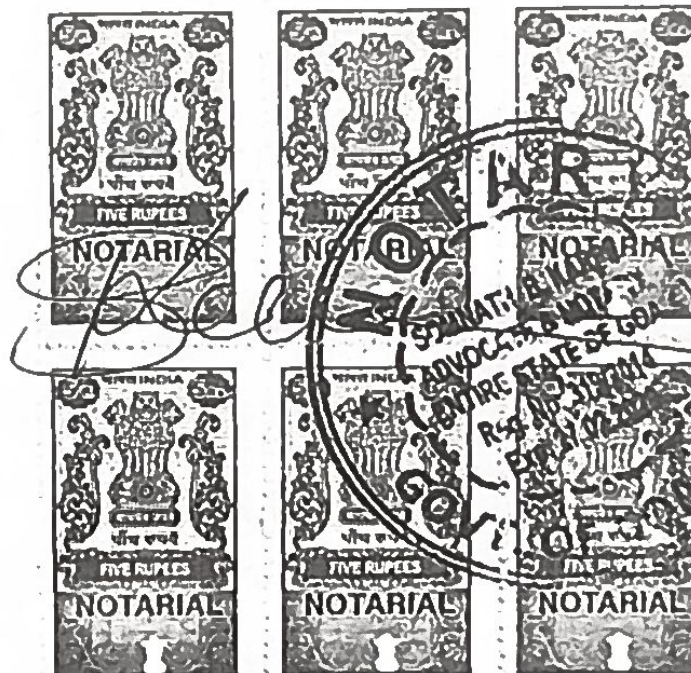
Solemnly affirmed before me by:
Shri/Smt. Riva Anthony Trindade

Who is identified to me by
Shri/Smt. Adv V. Pavithran

Who is personally known to me
this 07th day of March 2025

Reg. No. 19251/25

SOMNATH B. KARPE
NOTARY
ENTIRE STATE OF GOA
'INDIA'



BEFORE THE HON'BLE SOLE ARBITRATOR MR. NITIN N. N.
SARDESSAI AT PANAJI GOA

IN THE MATTER OF ARBITRATION BETWEEN:

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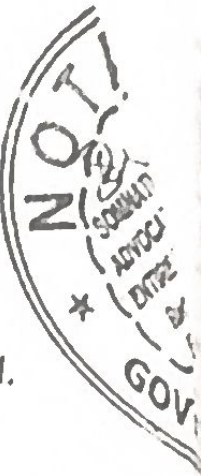
Mr. Riva Trindade and 3 Ors

....RESPONDENTS

AFFIDAVIT

I, Riva Anthony Trindade, Son of Late Pascoal Trindade, 52 years of age, Indian National, Businessman, resident of House No. 21/23/A, P.O NIO, Dona Paula, Tiswadi-Ilhas Goa the Respondent No.1 herein do hereby on solemn affirmation beg to state and submit as under:-

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1. I say that I am the Respondent No. 1 in the present proceedings and I am conversant with the facts of the present case.
2. I say that I have filed the accompanying Statement of Defence and I crave leave to refer and rely on the contents of the same as if the same are set out herein verbatim for the purpose of the present affidavit.
3. I say that the annexures annexed by me and enlisted in the List of Documents filed with the Statement of Defence are the true copies of the Original.
4. I say that what has been stated by me at para 7(Part), 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18(Part), and 22(Part) is based on facts true to my own knowledge and/or based on the records available with me and what has been stated by me at para 1, 2, 3, 4, 5, 6, 7(Part), 18(Part), 19, 20, 21, 22(Part), 23, 24, 25, 26, and 27 are in the nature of inferences of fact and/or legal submissions based on legal advice which I believe to be true.

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SOLEMNLY VERIFIED AT PANAJI
ON THIS 7th DAY OF MARCH 2026
DEPONENT

Identified by me:-

W. L. P.
Vilva Parithran
Solemnly affirmed before me by
Shri/Smt. *Eva Anthony Trindade*
Who is identified to me by
Shri/Smt. *Adv. V. Paulina*
Who is personally known to me
this *07th* day of *March*, 2025
Reg. No. *19.252/25*
[Signature]
SOMNATH B. KARPE
NOTARY
ENTIRE STATE OF GOA
(INDIA)

